

**SUBSTITUTE FOR  
SENATE BILL NO. 525**

A bill to amend 2016 PA 436, entitled  
"Unmanned aircraft systems act,"  
by amending section 7 (MCL 259.307), as added by 2018 PA 442.

**THE PEOPLE OF THE STATE OF MICHIGAN ENACT:**

1       Sec. 7. (1) Except as otherwise provided in subsection (6), a  
2 department, agency, board, or commission of this state or a person  
3 under a contract with or acting at the direction or on behalf of a  
4 department, agency, board, or commission of this state shall not  
5 use an unmanned aircraft system to surveil, inspect, or gather  
6 evidence or collect information about a facility that is subject to  
7 a permit, license, or order issued by or a decree or other  
8 requirement governed by that department, agency, board, or  
9 commission unless any of the following apply:



1 (a) The owner or operator of the facility has given express  
2 consent for the use of an unmanned aircraft system for the purposes  
3 described in this subsection in a particular instance.

4 (b) The department, agency, board, commission, or person is  
5 acting under a valid search warrant and the use of the unmanned  
6 aircraft system is strictly limited to the subject matter and scope  
7 of that warrant.

8 (c) The department, agency, board, or commission has reason to  
9 believe that there may be an imminent threat to public health,  
10 safety, property, or the natural resources of the state from the  
11 facility and the use of the unmanned aircraft system is strictly  
12 limited to the investigation of that imminent threat.

13 (d) The department, agency, board, commission, or person is  
14 inspecting ~~a~~**either of the following:**

15 (i) **A roadway, highway, airport, airport approach corridor,**  
16 **port, or similar infrastructure.**

17 (ii) **A telecommunications tower facility, grounds, antennae,**  
18 **shelter site, or similar infrastructure.**

19 (e) **The department, agency, board, commission, or person is**  
20 **participating in a recovery, assessment, or inspection effort in**  
21 **response to a declared state of emergency, local state of**  
22 **emergency, or state of disaster under the emergency management act,**  
23 **1976 PA 390, MCL 30.401 to 30.421, and the use of the unmanned**  
24 **aircraft system is strictly limited to assisting in that recovery,**  
25 **assessment, or inspection effort.**

26 (2) An unmanned aircraft system that is used as described in  
27 subsection (1) must be clearly marked as a state-owned or operated  
28 aircraft unless it is an unmanned aircraft system operated in  
29 accordance with subsection (3).



1 (3) For any use that is governed by subsection (1)(a), both of  
2 the following apply:

3 (a) Subject to subdivision (b), the consent of the owner or  
4 operator may be conditioned on the use of an unmanned aircraft  
5 system that is owned and operated by that owner or operator under,  
6 and in compliance with, Federal Aviation Administration  
7 regulations, authorizations, or exemptions. The department, agency,  
8 board, commission, or person under contract with or acting at the  
9 direction or on behalf of the department, agency, board, or  
10 commission shall allow, under its direct supervision, the use of  
11 the unmanned aircraft system by the owner or operator to conduct  
12 the surveillance, inspection, evidence gathering, or information  
13 collecting under this section, if doing so will gather information  
14 of a quality and nature sufficient for the intended purpose of the  
15 surveillance, inspection, evidence gathering, or information  
16 collection.

17 (b) If the owner or operator provides consent on the condition  
18 described in subdivision (a), or if the owner or operator withholds  
19 consent, the owner or operator shall provide to the department,  
20 agency, board, or commission a statement, in writing, that  
21 indicates the health and safety reasons for providing consent on  
22 the condition described in subdivision (a) or withholding consent.

23 (4) Any surveillance, inspection, evidence gathering, or  
24 information collecting conducted under subsection (1)(c) shall be  
25 under the direct supervision of the department, agency, board, or  
26 commission.

27 (5) Any data, including videos, photographic images, or  
28 geospatial data, collected by the operation of an unmanned aircraft  
29 system concerning a facility described in subsection (1) shall be



1 furnished promptly to the facility's owner or operator upon request  
2 and shall be rebuttably presumed to be not subject to disclosure  
3 under the freedom of information act, 1976 PA 442, MCL 15.231 to  
4 15.246.

5 (6) This section does not apply to a law enforcement agency  
6 operating an unmanned aircraft system as part of a law enforcement  
7 investigation.